

13. 9:00 AM CASE NUMBER: N24-1920
CASE NAME: THE 1323 AND 1325 LOCUST STREET, LLC VS. ADB GROUP, INC.
ASSIGNMENT OF RIGHTS; RESTRAINING ORDER; AND TURNOVER ORDER
FILED BY:

TENTATIVE RULING:

The unopposed ex parte application of the Plaintiff and Judgment Creditor for Assignment of Rights; Restraining Order; and Turnover Order is granted.

The court will sign the Proposed Order lodged with the court on July 27, 2026.

14. 9:00 AM CASE NUMBER: N26-0240
CASE NAME: CHELSEA STORKAN VS. DIRECTOR, DEPARTMENT OF MOTOR VEHICLES
PETITION FOR WRIT OF ADMINISTRATIVE MANDAMUS (CONT'D FROM 5/29/26 PER TR)
FILED BY: STORKAN, CHELSEA

TENTATIVE RULING:

Before the Court is Chelsea Storkan's petition for writ of mandamus challenging the order of suspension of her California Driver's License by the California Department of Motor Vehicles. For the following reasons, the writ petition is **denied**.

I. Writ Petition

On October 5, 2025, petitioner was detained by Officer Clayton Gardner of the Pleasant Hill Police Department. (Petition, ¶4.) At the time of the stop, Officer Gardner stated the reason for the stop was due to expired registration. (*Id.* at ¶5.) The report prepared by Officer Gardner stated the reason for the stop was expired registration and a missing license plate. (*Id.* at ¶6.)

The petition contends, in essence, that the officer lacks credibility given the circumstances. Petitioner alleges the missing plate was only discovered after the stop. (*Id.* at ¶¶6-8.) The petition does not challenge any aspect of petitioner's arrest following the stop, which she contends was unauthorized.

Petitioner states video footage of the stop would have "disproven" the officer's stated reasons for the stop, which included "sighting the defendant in the parking lot of Farrington's Bar," and notes that no video footage was provided pursuant to the police department's "own policy." (*Id.* at ¶¶9-11.) Petitioner points out that the officer did not make the stop until approximately one mile from the point of the initial sighting. (*Id.* at ¶12.) Petitioner states she has relevant evidence not presented at the hearing, which consists of the Pleasant Hill Police Department's policy regarding the mandatory use of body worn cameras during all investigative stops. (*Id.* at ¶13.) The evidence "could not be produced at the hearing because it was not provided." (*Ibid.*) A document, apparently from the Pleasant Hill Police Department, is attached to the petition. It states, in relevant part, "Our officers utilize body cameras during all calls for service including all enforcement activities, investigative stops and field interviews."

The verified petition for writ of mandate was filed on February 11, 2026. The petition attaches the administrative hearing officer's findings from the hearing on January 21, 2026. A hearing on the writ was initially set on May 29, 2026, but petitioner did not lodge the administrative record

until May 21, 2026, allowing too little time for the Court to review prior to the hearing. Accordingly, the hearing was reset to this date (August 7, 2026). The Court has now reviewed the petition, as well as the 76-page administrative record (“AR”) received. Notably, petitioner submitted no video evidence, as alluded to in the petition.

The Department represents the administrative record was not served, but has nevertheless opposed on the merits. Because the Department was responsible for preparing the 76-page PDF in the Court’s possession, the Court proceeds with its ruling and, barring any objection at the hearing, assumes all parties have the same record (no video footage was submitted) in their possession, and refers to the pages as they appear in numerical order, with page 1 being the “ADMINISTRATIVE RECORD AND TRANSCRIPT REQUEST RESPONSE LETTER,” page 2 being the Declaration certifying the record, and page 3 being the first page of the Hearing Officer’s FINDINGS OF FACT.

The petitioner seeks to have the DMV’s January 21, 2026 order set aside, and to reinstate petitioner’s driver’s license.

II. Law on Refusals and Administrative Per Se (APS) Suspensions

“A person who drives a motor vehicle is deemed to have given his or her consent to chemical testing of his or her blood or breath for the purpose of determining the alcoholic content of his or her blood, if lawfully arrested for” a driving-under-the influence offense (Vehicle Code § 23612, subd. (a)(1)(A)), and that such testing “shall be ... administered at the direction of a peace officer having reasonable cause to believe” the person was driving while under the influence of alcohol or a drug. (*Id.* at (a)(1)(C).) In subsequent subsections, the statute sets forth in detail the circumstances under which, pursuant to this implied consent, the arresting officer may require a chemical test, the various test choices available to the arrestee, and the procedure to be followed by the officer with respect to the arrestee’s license in the event the arrestee refuses to take or complete a required test. (*Troppman v. Valverde* (2007) 40 Cal.4th 1121, 1130.)

Vehicle Code section 13353 works “in tandem with section 23612.” (*Troppman, supra*, at 1130.) Section 13353 specifies actions to be taken by the DMV in the event a person refuses an officer’s request to submit to a chemical test (often referred to as a “refusal”). (*Troppman, supra*, at 1130.) Subdivision (a) authorizes the DMV to suspend or revoke the driver’s license of “a person [who] refuses [a law enforcement] officer’s request to submit to, or fails to complete, a chemical test or tests pursuant to Section 23612, upon receipt of the officer’s sworn statement that the officer had reasonable cause to believe the person had been driving a motor vehicle” while under the influence of alcohol or a drug. (*Troppman, supra*, at 1130.) Section 13353 also confirms the process by which the arresting officer is personally to serve upon a recalcitrant arrestee a notice of suspension or revocation “pursuant to Section 23612.” (Vehicle Code, § 13353, subd. (c).)

Section 13353, together with related statutes governing the scope of the administrative hearing, specifies four factual findings to be made by the DMV when a suspension or revocation action is subjected to administrative review or hearing. In order to confirm such action, the DMV must find that:

- (1) the law enforcement officer had “reasonable cause to believe the person had been driving a motor vehicle in violation of [one or more specified Vehicle Code sections]”;
- (2) the person “was placed under arrest”;
- (3) the “person refused to submit to, or did not complete, the test or tests after being

requested by a peace officer”; and

(4) the “person had been told that his or her driving privilege would be suspended or revoked if he or she refused to submit to, or did not complete, the tests or tests.”

(*Troppman, supra*, 40 Cal.4th at 1130-1131 [these four factors are the only issues to be resolved at the administrative hearing concerning license suspension or revocation].)

III. Administrative Hearing, Findings of Fact, and Decision

Petitioner requested an administrative hearing to challenge the administrative suspension by the DMV and that hearing was re-scheduled from the initially-set date of November 26, 2025. (AR 54, 70.) The hearing was held on January 21, 2026. (AR 3, 65.) At the hearing, petitioner appeared with her counsel. DMV Hearing Officer Sims recounted the four findings required in order to uphold the administrative suspension: “1. Did the peace officer have reasonable cause to believe the driver was driving a motor vehicle in violation of 23152 or 23153 VC; 2. Was the driver lawfully arrested.; 3. Was the driver told his or her driving privilege would be suspended or revoked for one, two or three years if he or she refused to submit to or fail to complete a chemical test.; 4. Did the driver refuse to submit to or fail to complete a chemical test after being requested to do so by a peace officer.” (AR at 29:6-16.)

Hearing Officer Sims introduced four exhibits which included (1) the sworn officer statement, (2) the police report, (3) five slides from the “MVARs,” referring to Audio/Video Evidence, and (4) petitioner’s driving record. (AR 30, 75 [clarifying MVARs refers to Audio/Video Evidence].) Counsel objected, but the objections were overruled. Petitioner testified at the hearing that she did not see a police officer at any point until just before she was pulled over. (AR 34, 10-18.) Hearing Officer Sims asked one question and petitioner answered and was then excused. (AR 33-36.) Counsel then argued that the police officer lacked credibility based on his mistake as to the date of the stop. (AR 37-38.) Counsel moved to “set aside,” and the motion was denied. (AR 38:6-10.)

Hearing Officer Sims took the matter under submission and later issued a statement of findings and decision upholding the license suspension. (AR 3-5, 38.) The “Lawful Contact” portion of the decision states:

Respondent was lawfully detained by Officer C. Gardner badge #487 with Pleasant Hill PD at 22:29 PM. A reasonable articulable suspicion to detain Respondent was based on Officer C. Gardner observations of a black 2022 Ford Ranger driving through the parking lot appearing to head toward the exit. Officer C. Gardner noticed the vehicle was not equipped with a front license plate and the vehicle registration was expired as of 06/30/2025 however, the vehicle was displaying 2026 tags.

Respondent contends: Counsel for the Respondent contends the Officer did not have Probable Cause to believe Respondent was driving a motor vehicle while under the influence.

Determination: An officer may stop a driver for circumstances short of probable cause to arrest. The criterion for determining the validity of a stop is whether the circumstances would have indicated to a reasonable person, in a similar position, that an investigation was necessary to the proper discharge of the officer's duties. In this case, the Officer C. Gardner observed the respondent missing a license plate and while doing a DMV check saw its registration was expired even though the vehicle was displaying a red 2026 registration tab. It is very clear that any reasonable

person, in a similar position, would have determined that an investigation was necessary.

(AR 3.)

While Hearing Officer Sims considered counsel's arguments, Sims ultimately found an apparent error on the police report (the officer had recorded the date of patrol as 10/06/2025) was "insufficient to rebut the Department's evidence and invalidate the official duty presumption. The peace officer has an obligation to record events as they occur and to accurately reflect all events surrounding the contact and arrest." Sims stated that "[t]he clerical error noted on Exhibit #2 Narrative is not deemed fatal to this administrative process." (AR 4.) Further, "[t]he Department can reasonably infer the evidence contains all the relevant, articulate facts that serve as a prerequisite for the stop, contact, and lawful arrest. Counsel presented no probative evidence or testimony to substantiate that the events reported are not what they purport to be. (AR 4.)

Hearing Officer Sims also found petitioner was lawfully arrested because, once pulled over, the Officer Garder "observed Slurred Speech, Red and/or Watery Eyes, Odor of Alcohol, and Unsteady Gait." (AR 4.) Finally, Hearing Officer Sims further found that petitioner had been sufficiently admonished, and that she still refused to take a required chemical test to verify her blood alcohol content. (AR 4-5; see also police report at AR 18-20.) As a result, Hearing Officer Sims reimposed the suspension of petitioner's license. (AR 5.)

IV. Standard of Review:

When a person petitions for a writ of mandate following an order suspending his or her driver's license, the court is required to determine, based on the exercise of its independent judgment, whether the weight of the evidence supports the administrative decision. (*Arthur v. Department of Motor Vehicles* (2010) 184 Cal.App.4th 1199, 1204, citing *Lake v. Reed* (1997) 16 Cal.4th 448, 456, Code Civ. Proc., § 1094.5.) In making that determination, the court acts as a trier of fact; it has the power and responsibility to weigh the evidence and make its own determination about the credibility of witnesses. (*Arthur, supra*, 184 Cal.App.4th at 1205, citing *Barber v. Long Beach Civil Service Com.* (1996) 45 Cal.App.4th 652, 658.) The administrative findings, however, are entitled to "a strong presumption of correctness," and "the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence." (*Arthur, supra*, 184 Cal.App.4th at 1205, citing *Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 817.) Review is limited to the administrative record. (Veh. Code, § 13559(a).)

V. Analysis:

Petitioner only challenges one aspect of the four required findings of the DMV hearing officer: that the officer had the initial authority for stopping her vehicle. This pretext argument was also asserted by petitioner's counsel at the administrative hearing, wherein counsel argued that the officer made a mistake as to the date of the stop and therefore lacked credibility. (AR 37-38.)

"[A] lawful traffic stop occurs when the facts and circumstances known to the police officer support at least a reasonable suspicion that the driver has violated the Vehicle Code or another law." (*People v. Nice* (2016) 247 Cal.App.4th 928, 937-938.)

Just as petitioner contends the videos would support her narrative, the Department argues the MVARs video footage supports the officer's account. The Court has not received any videos. Accordingly, it cannot consider them. However, the administrative hearing officer's findings are still viewed with a presumption of correctness, and petitioner still bears the burden of showing the

findings are contrary to the weight of the evidence.

"Evidence Code section 664, which presumes that an official duty has been regularly performed, has been widely applied to DMV administrative hearings." (*Petricka v. Department of Motor Vehicles* (2001) 89 Cal.App.4th 1341, 1348.) "Evidence Code section 664, which affects the burden of proof, can satisfy the DMV's burden of proving that appropriate procedures have been properly performed. Once a prima facie case is made, the burden then shifts to the driver to show improper performance, either by cross-examination of the arresting officer or by the introduction of affirmative evidence." (*Ibid.*)

Here, Officer Gardner stated two bases for the stop. Petitioner's truck was missing a front license plate, which he noted was "a violation of California Vehicle Code section 5200(a)," and the registration was showing as expired, according to a DMV check (despite a current sticker on the vehicle), which he noted was a "violation of California Vehicle Code section 4000(a)(1)." (AR 18.) The documentary evidence here satisfied the Department's initial burden of proof. The court finds that the record is sufficient as to the officer's reason for the stop even without the presumption afforded under Section 664.

On direct examination, petitioner testified she did not observe the officer until after he was driving behind her. She did not establish that her failure to observe the officer would mean he was not there, or could not have otherwise observed the lack of front license plate. Petitioner also did not provide any evidence to undermine the officer's representation he "performed a DMV records check of the vehicle" or that he "saw its registration was expired as of 06/30/2025." (AR 18.) The Hearing Officer was not required to give petitioner's testimony more weight than the report by the officer.

The Court agrees with the hearing officer's finding that the incorrect date, combined with petitioner's testimony, "insufficient to rebut the Department's evidence and invalidate the official duty presumption." The Court further agrees that no probative evidence or testimony substantiated a version of events other than the version described in the police report.

On the record here, the Court independently finds that the Department's findings of fact and decision were supported by the weight of the evidence. The writ must therefore be **denied**.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
COMPEL CROSS-DEFENDANT MICHAEL JENKINS' DEPOSITION
FILED BY: D & A CARRIER, INC,
TENTATIVE RULING:

On May 22, 2026, the Court granted Defendant Lyft's Motion to Compel Arbitration and stayed this action. The court ordered, "Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the Parties."